

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 12, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Dr. Rinne, and pursuant to support received by Mr. Roybal and Mr. Cook, item #23(b) was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. White, item #24(a) was removed from the Consent Agenda. Mr. Esquibel moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on January 22, 2024. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of the intersection of Douglas Street and Ridge Road. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4545)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR Agricultural Residential for land annexed to the City of Cheyenne located northeast of the intersection of Douglas Street and Ridge Road. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4546)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Converse Avenue and south of Storey Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4547)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural and LR Low-Density Residential for land annexed to the City of Cheyenne located east of Converse Avenue and south of Storey Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4548)

ORDINANCE – 3rd READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from AG Agricultural and LR Low-Density Residential to CB Community Business and MR Medium-Density Residential for land located east of Converse Avenue and south of Storey Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4549)

ORDINANCE – 3rd READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from NB Neighborhood Business to CB Community Business for land located southeast of and adjacent to the intersection of Dell Range Boulevard and Bluegrass Circle. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4550)

ORDINANCE – 3rd READING – Amending the Official Zoning map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land located north of and adjacent to Pershing Boulevard between McCann Avenue and College Drive. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4551)

ORDINANCE – 2nd READING – Amending Ordinance No. 4431, which established a new compensation schedule for members of the City Council of the City of Cheyenne, to clarify the manner in which compensation is to be computed and providing for an effective date. Reporting for Finance Committee, Dr. Aldrich moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mr. Esquibel, Mr. Johnson and Dr. Rinne.

ORDINANCE – 1st READING – Amending certain sections of Chapter 44, Solid Waste, and Chapter 56, Noise Control, of Title 8, Health and Safety, and further amending certain sections of Chapter 8, Offenses Against Public Peace and Decency, and Chapter 12, Offenses Against Property, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate the potential imposition of a jail sentence for violation of specified code provisions – referred to Finance Committee. (Sponsor – Mr. Esquibel)

ORDINANCE – 1st READING – Creating Section 2.40.100, Public Defender and Representation of Needy Persons; Determination of Need, of Chapter 2.40, Municipal Court, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, Specifying Public Defender Appointment Procedures and Standards for Representation in the Municipal Court – referred to Finance Committee. (Sponsor – Mr. Esquibel)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for The Bluffs, 12th Filing, City of Cheyenne, Laramie County, Wyoming (located East of Converse Avenue and South of Storey Boulevard). Mr. Roybal moved to adopt with Planning Commission conditions that (1) updated traffic information be provided and approved by the Engineering Department and (2) prior to the Mylars being signed and easement across Townsend Place

Apartments LP be recorded to allow Wild Bluff to connect into Converse Avenue, seconded by Mr. Segrave. Mr. Roybal moved to postpone to February 26, 2024, seconded by Dr. Rinne. Motion to postpone carried. Voting “yes” – all members of the governing body. Public comment was made by: Randy Guill, Horizon Development. Comment was made by the following member of the governing body: Mr. Johnson.

[CA] RESOLUTION – Supporting the efforts of the Cheyenne Soccer Club to raise funds toward design, construction, management, and on-going maintenance of an indoor soccer complex to be located on a portion of the City owned North Cheyenne Community Park. Motion (per Consent Agenda) carried. (#6384)

[CA] RESOLUTION – Approving a sponsorship by Bison Beverage for the Cheyenne Frontier Days Rodeo Events occurring July 19 through July 28, 2024 and July 18 through July 27, 2025 – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Requesting that the Wyoming State Legislature consider legislation authorizing the sale of alcoholic beverages with an alcohol by volume of 5% at grocery stores and convenience stores throughout the state – referred to Finance Committee. (Sponsor – Mr. Johnson)

[CA] RESOLUTION – Regarding the proposed Cowboy Solar Project, authorizing the Mayor to pursue and secure possible impact assistance funds on behalf of the City as provided by Wyoming law – referred to Finance Committee. (Sponsor – Mr. Segrave)

[CA] RESOLUTION – Authorizing the City of Cheyenne to approve and submit the Wyoming Division of Victim Services Funding Application State Fiscal Year 2025 and 2026 – referred to Finance Committee. (Sponsor – Dr. Aldrich)

Professional Services Agreement between the City of Cheyenne and TDSi for Professional Design Services for the Cheyenne Depot Museum Improvements Project (2021 Specific Purpose Option Tax Fund). Dr. Aldrich moved to approve in an amount not to exceed \$122,433.00, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. White who declared a conflict of interest and vacated council chambers during discussion and voting. (#7908)

[CA] Contract Modification #1 to Contract #7717 between the City of Cheyenne and TDSi for the Gymnastics Facility Site Development Project for additional construction services and extending the term of the contract (Recreation Program Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$109,500.00. (#7717)

Contract Modification #1 to Contract #3920 between the City of Cheyenne and Charles E. Bales regarding street improvements located adjacent to 3618 Charles Street. Mr. Roybal moved to approve, seconded by Mr. Segrave. Mr. Roybal moved to postpone to February 26, 2024, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Dr. Rinne.

[CA] Contract Modification #1 to Contract #7728 between the City of Cheyenne and AVI for additional design elements for the Dell Range Design Services Project for the reconstruction of a portion of Dell Range Boulevard (between Van Buren Avenue and Whitney Road) (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$38,515.00). (#7728)

[CA] Contract Modification #3 to Contract #6798 between the City of Cheyenne and Trihydro Corporation to extend the term for one (1) additional year for additional Happy Jack Landfill environmental monitoring services (Solid Waste Fund) – referred to Finance Committee.

Consideration of Bid #S-9-24 for the Spiker Parking Garage Restroom Renovation (2021 Specific Purpose Option Tax Fund). Dr. Aldrich moved to accept the bid from Construction Specialists, Inc., Cheyenne, in an amount not to exceed \$269,000.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. Segrave. (#7909)

[CA] Consideration of Bid #S-7-24 for an agreement between the City of Cheyenne and JTL Group Inc d/b/a Knife River, for the Airport Parkway Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

Appointment of Travis Shaffer to the Contractors Licensing Board; and James Fraley to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Appointments of Pat Crank and Bill Hibbler to serve as Administrative Hearing Officers for the City of Cheyenne. Dr. Aldrich moved to approve, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

No comments were made on the Voucher Report as presented.

Notice of Emergency Procurement. In accordance with the City of Cheyenne Purchasing Policy, an Emergency Procurement has been authorized by Mayor Collins for the Municipal Building Boiler Replacement. The emergency repair has been authorized to Ameri-Tech HVAC Services, Inc. for a total of \$215,292.00.

Announcement was made of a Public Hearing to be held February 26, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk’s Office.

Announcement was made that due to the President's Day Holiday on Monday, February 19, 2024, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, February 20, 2024 and Public Services Committee will meet at Noon on Wednesday, February 21, 2024. Both meetings will be held at 2101 O'Neil Avenue, Room 104 and via electronic conference meeting.

Public comment was made by Jim Ridgeway under other business.

The following members of the governing body made comments under other business: Dr. Aldrich, Mayor Collins, Mr. Johnson and Mr. Laybourn.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:07 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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